

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

09 1078

LORI DESANTIS,

COMPLAINT

Plaintiff,

-against-

CITY OF NEW YORK, YVONNE BREINER, FLORETTA
CHOW, RICARDO BOCACHICA, PAUL ZITO, DENNIS
BOWEN, and JOHN and JANE DOE 1 through 10, individually
and in their official capacities, (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

Index No.:
BLOCK, J. REYES

Jury Trial Demanded

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

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FILED
CLERK

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Plaintiff LORI DESANTIS, by her attorneys, Leventhal & Klein, LLP, complaining of
the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in the matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. At all relevant times, plaintiff, LORI DESANTIS was a resident of the Borough of Richmond, City and State of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendants, YVONNE BREINER, FLORETTA CHOW, RICARDO BOCACHICA, PAUL ZITO, DENNIS BOWEN, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

FACTS

13. On March 17, 2006, at approximately 6:00 p.m., the defendants arrested plaintiff LORI DESANTIS for possession of a small amount of marijuana while plaintiff was seated in a motor vehicle in the vicinity of Prospect Park, Brooklyn, New York.

14. The defendants placed handcuffs on plaintiff's wrists and intentionally squeezed the handcuffs so that the handcuffs were severely and painfully tight. Plaintiff repeatedly asked the defendants to loosen the handcuffs because they were causing extreme pain in her wrists and numbness in her hands. Despite her requests, the defendants refused to loosen the handcuffs.

15. From the first interactions between the defendants and the plaintiff, the defendants verbally harassed plaintiff with disgusting, vile, and rude remarks. The defendants accused plaintiff of being a prostitute, crack addict, and heroin addict. The defendants told plaintiff that she licked the marijuana cigarette really well, and she had good lips.

16. At the scene of the arrest, plaintiff explained to the defendants that she suffered from depression and bipolar disorder and requested her medication from a bag that the defendants had searched. The defendants laughed at the plaintiff and refused to give her the medication or bring her to a hospital for medical treatment.

17. The defendants placed plaintiff in a police vehicle and drove plaintiff around for

approximately three hours before bringing plaintiff to the 70th police precinct in Brooklyn.

During this time, plaintiff suffered from severe pain in her wrists and numbness in her hands due to the over tight handcuffs.

18. At the 70th precinct, the defendants illegally strip searched plaintiff by forcing plaintiff to remove all of her clothing, squat and cough.

19. While imprisoned in a holding cell in the 70th precinct, plaintiff repeatedly stated that she suffered from depression and bipolar disorder, that she hadn't eaten all day, and that she wasn't feeling well. The plaintiff repeatedly requested that the defendants give plaintiff her medication or bring plaintiff to a hospital. In response, the defendants including one of the female defendant police officers, either defendant YVONNE BREINER or defendant FLORETTA CHOW, verbally harassed, antagonized, and belittled plaintiff. The defendants, including one of the female defendant officers, repeatedly told plaintiff that they would not give plaintiff her medication nor bring plaintiff to a hospital. The defendants, including one of the female defendant officers, repeatedly stated to plaintiff, in sum and substance: we're not bring you to the hospital bitch; you're a drug addict, a bitch, a princess; you're breath stinks and you should brush your teeth. Plaintiff responded by expectorating toward this female defendant officer.

20. The defendants including one of the female defendant police officers, either defendant YVONNE BREINER or defendant FLORETTA CHOW, opened the door of the holding cell, and intentionally attacked plaintiff. The female defendant pulled plaintiff's hair while repeatedly punching plaintiff in the face and head. Plaintiff did not defend herself and cried out for other officers to help her. Other defendant police officers witnessed the female defendant illegally assault plaintiff but the defendants did not intervene to stop the assault or

assist the plaintiff. The defendants handcuffed plaintiff while she was being beaten by the female police officer. While plaintiff was restrained by handcuffs behind her back, the female defendant officer repeatedly punched plaintiff on her face.

21. The defendants removed plaintiff from the holding cell and sat plaintiff in a chair where defendants YVONNE BREINER and FLORETTA CHOW acted together to assault and batter plaintiff. While plaintiff was sitting in the chair restrained with handcuffs behind her back, either defendant BREINER or CHOW applied a mace gel to the other defendant's hand. While either defendant BREINER or CHOW held plaintiff back in the chair, the other defendant rubbed the mace gel across plaintiff's eyes causing plaintiff to suffer severe burning and pain to her eyes and face. Plaintiff was hysterical and crying. The defendants placed plaintiff back in the holding cell and left her in the holding cell restrained by handcuffs behind her back thereby preventing plaintiff from rinsing or cleaning her eyes. This intentional and sadistic assault occurred in the presence of other defendant police officers who failed to intervene in the illegal conduct.

22. Defendant City of New York, through the Narcotics Bureau, among others, of the New York City Police Department, has an unconstitutional policy, custom or practice, of conducting blanket strip searches of individuals in police custody, regardless of whether reasonable suspicion that the arrestee is in possession of weapons or contraband exists or not. This unconstitutional policy, custom, or practice, among others, was a moving force behind the violation of plaintiff's rights as set forth herein.

23. As a result of the foregoing, plaintiff LORI DESANTIS sustained, *inter alia*, physical injuries, emotional injuries, stress, embarrassment, and humiliation, and deprivation of her liberty and constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights under 42 U.S.C. § 1983)

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "23" with the same force and effect as if fully set forth herein.

25. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

26. All of the aforementioned acts deprived plaintiff LORI DESANTIS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

AS AND FOR A SECOND CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

30. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff LORI DESANTIS'S constitutional rights.

32. As a result of the aforementioned conduct of defendants, plaintiff LORI DESANTIS was subjected to excessive force and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Deliberate Indifference to Serious Medical Needs under 42 U.S.C. § 1983)

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. The defendants were deliberately indifferent to plaintiff's medical needs, and as a result, caused plaintiff to sustain unnecessary infliction of pain.

35. As a result of the foregoing, plaintiff LORI DESANTIS was subjected to deliberate indifference to her serious medical needs.

AS AND FOR A FOURTH CAUSE OF ACTION
(Unlawful Strip Search under 42 U.S.C. § 1983)

36. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "35" with the same force and effect as if fully set forth herein.

37. The strip search of plaintiff LORI DESANTIS herein was conducted in the absence of individualized reasonable suspicion that plaintiff possessed any alleged contraband or weapons at the time of his arrest.

38. As a result of the aforementioned conduct of defendants, plaintiff LORI DESANTIS' right to be free from unreasonable strip searches was violated.

AS AND FOR A FIFTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

40. Defendants had an affirmative duty to intervene on behalf of plaintiff LORI DESANTIS, whose constitutional rights were being violated in their presence by other officers.

41. The defendants failed to intervene to prevent the unlawful conduct described herein.

42. As a result of the foregoing, plaintiff LORI DESANTIS was put in fear of her safety, he was humiliated, and subjected to an unjustified strip search, deliberate indifference to her medical needs, physical abuse and tight handcuffing.

AS AND FOR A SIXTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

47. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, conducting blanket strip searches of individuals arrested by NYPD Narcotics Division. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff LORI DESANTIS'S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff LORI DESANTIS.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff LORI DESANTIS as alleged herein.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff LORI DESANTIS as alleged herein.

51. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff LORI

DESANTIS was beaten, strip searched, and subjected to physical abuse.

52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff LORI DESANTIS'S constitutional rights.

53. All of the foregoing acts by defendants deprived plaintiff LORI DESANTIS of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To receive equal protection under law;
- C. To be free from the use of excessive force and/or the failure to intervene;
- D. To be free from unlawful strip searches; and
- E. To be free from deliberate indifference to her serious medical needs.

54. As a result of the foregoing, plaintiff LORI DESANTIS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

WHEREFORE, plaintiff LORI DESANTIS demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury:
- (B) punitive damages in an amount to be determined by a jury:
- (C) reasonable attorney's fees and the costs and disbursements of their action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
March 12, 2009

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By:


BRETT H. KLEIN (BK4744)

Attorneys for Plaintiff LORI DESANTIS

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